

Mukhtar Washeem v. Uttar Pradesh Power Corporation Limited

Allahabad High Court · Division Bench · 15 December 2022 · Civil Misc. Review Application No. 454 of 2022 · **Review allowed; CGRF directed to recall its rejection, decide s.56(2)/clause 6.5 objections on merits, and consider restoration; writ and review disposed of.**

HEADNOTE

On review, the Allahabad High Court recalled its 23 September 2022 dismissal of the consumer's writ and directed the Consumer Grievance Redressal Forum to recall its 14 November 2022 rejection of the clause 7.10 representation, decide on merits the objections that the demand was barred by section 56(2) of the Electricity Act, 2003 read with clause 6.5 of the Supply Code, and consider restoration of supply. The review and connected writ were disposed of; the consumer was not relegated to a section 127 appeal.

FACTUAL SUMMARY

Mukhtar Washeem sought review of the High Court's 23 September 2022 dismissal of his writ against UPPCL. A clause 7.10 representation, filed because a clause 6.5 application was pending before the Executive Engineer, had not been placed before the Court. After the writ fell, the Consumer Grievance Redressal Forum rejected that representation on 14 November 2022. The dispute was a bill said to be barred by section 56(2) of the Electricity Act, 2003 read with clause 6.5, and restoration of supply was claimed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

cgrf-billing-and-restoration-remittal

HOLDING

The Division Bench reviewed and recalled the order dated 23 September 2022. It directed the Consumer Grievance Redressal Forum to recall the Forum's 14 November 2022 dismissal of the consumer's clause 7.10 representation and to decide that representation on merits, dealing with the objections that the billed demand was barred by section 56(2) of the Electricity Act, 2003 read with clause 6.5 of the Supply Code, preferably within one month, and also to consider the claim for restoration of electricity connection. Both the review application and Writ-C No. 28202 of 2022 were disposed of. ¶ 1

PRINCIPLE TAGS

alternate-remedy-clause-7.10 On review, the Court recalled the writ dismissal and sent the billing and restoration claims to the Consumer Grievance Redressal Forum under clause 7.10 rather than deciding them on the writ or relegating the consumer to a section 127 appeal. ¶ 1

clause-7.10-forum-ombudsman-route-for-billing-grievances The Forum was directed to recall its rejection of the clause 7.10 representation and to decide on merits the consumer's objections that the demand was barred by section 56(2) read with clause 6.5. ¶ 1

bill-correction-clause-6.5 Clause 6.5 objections to the billed demand, tied to section 56(2), were left for the Forum to decide on merits; the High Court did not itself correct or quash the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLED DEMAND IS BARRED BY SECTION 56(2) OF THE ELECTRICITY ACT, 2003 READ WITH CLAUSE 6.5 OF THE SUPPLY CODE

Directed to be decided on merits by the Consumer Grievance Redressal Forum ¶ 1

NOT DECIDED — WHETHER ELECTRICITY CONNECTION SHOULD BE RESTORED

Forum directed only to consider the restoration claim ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.